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****Case Number:**** NAIH-854-6/2024

****Precedents:**** NAIH-2859/2023

NAIH-8920/2022

****Subject:**** Decision rejecting the application and establishing a violation ex officio

****DECISION****

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) [...] based on the application submitted by the applicant (hereinafter: Applicant) on December 1, 2022, regarding unlawful data processing related to the failure to fulfill the obligation to provide information, initiated a data protection authority procedure against [...] (hereinafter: Respondent 1) and [...] (hereinafter: Respondent 2) (hereinafter collectively: Respondents), in which the Authority involved [...] Cooperative (hereinafter: Cooperative) as a party, makes the following decision:

I.1. The Authority rejects the application of the Applicant in its decision.

I.2. The Authority ex officio establishes in its decision that

- the Cooperative violated Article 6(1) and Articles 13(1) – (2) of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation and GDPR) concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data, as well as the repeal of Directive 95/46/EC, and
- Respondent 1 violated Article 14(2)(f) of the GDPR.

There is no legal remedy available against this decision through administrative means; however, it can be contested in an administrative lawsuit by filing a statement of claim addressed to the Metropolitan Court within 30 days from the notification. The statement of claim must be submitted electronically to the Authority, which will forward it along with the case documents to the court. A request for a hearing must be indicated in the statement of claim. For those not fully exempt from personal fees, the administrative lawsuit fee is HUF 30,000, and the case is subject to the fee recording right. Legal representation is mandatory in proceedings before the Metropolitan Court.

****REASONING****

I. Procedure

(1) The Applicant submitted a request for the initiation of a data protection authority procedure against the Respondents on December 1, 2022, based on Section 60(1) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.).

1 The form for initiating the administrative lawsuit is called NAIH_KO1: NAIH KO1 form (2019.09.16). The form can be filled out using the general form-filling program (ÁNYK program). The form is accessible and downloadable from the Authority's website:

<https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

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(2) The Authority summoned the Applicant to provide additional information pursuant to Section 44 of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.), which the Applicant complied with by the deadline on December 20, 2022.

(3) In its order, the Authority called upon the Respondents to make statements for the purpose of

clarifying the facts, referring to Section 63 of the Ákr., to which Respondent 1 responded on February 21, 2023, and Respondent 2 responded on February 17, 2023. Respondent 1 requested that part of its information be treated as a business secret. The Authority made a decision on this in its order.

(4) The Authority called upon Respondent 1 for a second and third time to make statements, which Respondent 1 complied with. Respondent 1 again requested that part of its information be treated as a business secret. The Authority made a decision on this in its order.

(5) The Authority granted the Cooperative party status based on Section 10 (1) of the Ákr., and then called upon it to make a statement, which the Cooperative complied with by the deadline.

(6) The Authority notified the Applicant and the Respondents, as well as the Cooperative, that the evidentiary procedure had been completed, and drew their attention to the fact that they could make a statement or comments. Neither the Applicant, nor the Respondents, nor the Cooperative made any statements or exercised their right to inspect documents.

(7) In its order NAIH-854-2/2024, the Authority granted the request of Respondent 1 for the treatment of the documents named as business secrets. These documents are as follows: a screenshot from Respondent 1's contract management system, and the parts of the document titled "Procedure for Managing Group Contracts" that are not to be used in this decision.

II. Clarification of Facts

II.1. The Applicant's request and additional information (documents NAIH-8980-1/2022, NAIH-8980-3/2022):

(8) The Applicant requested the following:

The Authority should investigate the "alleged" violation of the law based on Articles 58 (1) and (2) of the GDPR, and depending on the outcome of the investigation, instruct the data controller/data processor to provide the missing documents, and impose an administrative fine in accordance with Article 83.

(9) The Applicant attached the following documents in copy to the request:

- a document containing the Applicant's personal data [...],
- "Information on the repayment of expired [...] contracts."

(10) The Applicant stated that the Respondents requested the provision of the Applicant's personal data without having provided a data processing notice regarding the data processing. Furthermore, no "receipt" was prepared for the transfer of the personal data, and they were informed that if the request was not fulfilled, they would "be forced to charge the amount to be disbursed to the respective apartment." According to the Applicant, the alleged data protection violation committed by the Respondents affects several residents.

(11) The Applicant personally handed over the data sheet titled "Supplementary Identification Data Sheet for Payment" to Respondent 2 at its customer service, on which the Applicant provided their personal data and attached the requested document copy, namely a copy of their identification document.

(12) The aforementioned data sheet contains the following personal data of the Applicant:

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- contract number,
- partner number,
- first and last name,
- birth first and last name,
- place of birth,
- mother's name,
- tax identification number.

II.2. Statements of the Applicant 1 (NAIH-2859-2/2023, NAIH-2859-6/2023, NAIH-2859-7/2023, NAIH-2859-15/2023)

(13) Applicant 1 is obliged to conduct customer due diligence in accordance with Act LIII of 2017 on the prevention and combating of money laundering and terrorist financing (hereinafter: Pmt.), as well as to implement financial and asset restrictive measures ordered by the European Union and the United Nations Security Council for the purpose of preventing and combating the financing of terrorism, as stipulated in Act LII of 2017 (hereinafter: Kit.). This means that it must identify all its customers, carry out verification of their identity, and maintain records of the personal identification data prescribed and listed by law.

(14) The personal data requested in our customer due diligence forms, detailed below, is processed by Applicant 1 for the purpose of fulfilling its customer due diligence obligation under the Pmt., based on the legal obligation of the data controller as defined in Article 6(1)(c) of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation and GDPR) concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data, as well as the repeal of Directive 95/46/EC.

(15) The sections of the Pmt. establishing legal obligations for Applicant 1 as a financial institution are: Pmt. § 6 (1), § 7 (1) – (3), (8), (8a), § 8 (1), § 9/A, § 13 (1)-(2), (8), § 15 (1), (1a), (3).

(16) The form referred to in the Authority's call, named [...] (hereinafter: Data Sheet), is invalid, and is currently no longer in use by Applicant 1; it is not available and will not be forwarded to the clients and partners of Applicant 1. The scope of personal data processed based on the previously used Data Sheet and document copies is identical to that of the valid forms and document copies processed by Applicant 1.

(17) Applicant 1 also accepts the submission of the previously valid Data Sheet based on the recommendation No. 9/2020 (VII.14.) of the Hungarian National Bank regarding the application of consumer protection principles by financial organizations, so that clients subject to simplified due diligence do not have to identify themselves again, thereby preventing delays in payments, particularly considering that the scope of personal data processed based on certain supplementary identification data sheet forms and their corresponding document copies remains unchanged.

(18) Applicant 1 provides detailed information regarding its customer due diligence under the Pmt. on its website at [...] link with the documents related to Customer Due Diligence, which include the following:

- supplementary identification data sheet valid from 2021.08.01 (i.e., currently),
- Announcement regarding the obligations of Applicant 1 related to customer due diligence (effective from 2021.09.22),
- Guide [...],
- other forms necessary for customer identification under the Pmt.

(19) Applicant 1 provides information about the data processing related to customer due diligence under the Pmt. on the homepage of its website, as well as in the information available under the "Data Protection" menu at [...] link.

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with particular regard to points IV.1.3. and IV.1.4., provides information.

(20) The tax identification number listed on the currently valid Supplementary Identification Data Sheet is personal data that the Applicant 1 processes based on GDPR Article 6(1)(c) for the purpose of fulfilling a legal obligation concerning Applicant 1 prior to October 17, 2018, in the case of contracts utilized with state support – that is, also in the case of the Applicant – in accordance with Section 21(1) of Act CXIII of 1996 on Housing Savings and Section 3(2)(a) of Government Decree 215/1996 (December 23) on State Support for Housing Savings, considering that the verification of eligibility for state support and the application for state support due on savings is based on the tax identification

number of the person entitled to state support from the Hungarian State Treasury. The necessity of data processing is communicated to the clients of Applicant 1 at the time of making an offer for the conclusion of the contract on the offer form, in accordance with Section D) 11 of the currently valid business regulations of Applicant 1, as well as according to point IV.1.1. of the Privacy Notice.

(21) The existing practice at Applicant 1 for housing savings contracts is the so-called Group Contracting, which consists of projects made up of individual customer contracts, concluded by the residents of the affected municipality, members of water utility associations, or residents of condominium/apartment cooperatives for the purpose of achieving a predetermined common housing goal, and a corresponding assignment agreement is signed. The balance of the contract is assigned by the contracting customer to the condominium, apartment cooperative, etc., which, in order to realize the project, applies for a loan in a partner bank loan transaction, offering the contracts as collateral either partially or in full. In this structure, the assignee acts as a partner in the contractual relationship with the housing savings bank, who, according to Section 6:193(2) of Act V of 2013 on the Civil Code (hereinafter: Civil Code), steps into the position of the assignor regarding the claim against Applicant 1.

(22) The Applicant made an offer to conclude a housing savings bank contract aimed at group financing of investments on December 13, 2017, with Applicant 1, based on which a contract was established, confirmed on February 15, 2018, which was assigned to the Cooperative for the purpose of realizing the [...] project. The representation of the Cooperative in connection with the project is provided by Applicant 2 (authorized representative: [...]).

(23) Applicant 1 also stated that the Applicant and Applicant 2 are in an assignor and assignee relationship with each other, and Applicant 1 is obligated in this regard. Applicant 2 acts as a data controller during the processing of the Applicant's data. Applicant 1 also acts as a data controller concerning the Applicant and Applicant 2, and Applicant 2 does not perform data processing activities for Applicant 1.

(24) The maturity of housing savings contracts belonging to a single project, which can reach up to 100 contracts, and the payment of deposits by Applicant 1 will occur at different times. According to the procedure of Applicant 1, in group projects, when the first disbursement phase of the contracts belonging to the group is reached, a "Property Right Certification Data List" and the so-called [...] accompanying letter are prepared. The mandatory attachments related to the list are selected according to whether the relevant project has a level of bank financing.

(25) For the [...] project, the [...] list and the informational annex were mailed by Applicant 1 in September 2020, as the first two contracts from the group were disbursed on November 30, 2020.

(26) The Data Sheet has been attached as an annex for informational purposes to the "Partner" of Applicant 1; however, regarding the project number [...] of the Cooperative, Applicant 1 has not provided any instructions for data processing in writing or verbally concerning the Data Sheet submitted by the Applicant.

(27) This is supported by the statement of Applicant 1 that, in its letter dated April 1, 2020, it informed Applicant 2 that the project involved and

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In the case of contracts awaiting payment, not all housing savings account holders have provided all the documents necessary for client due diligence to Respondent 1; therefore, it has taken immediate action to obtain the required documents. The request or instruction for obtaining the Data Sheet and document copies from the Applicant was not articulated by Respondent 1 in its communication to Respondent 2.

(28) Respondent 1 referred to its procedural rules, which only stipulate the necessity of identification.

(29) Respondent 1 also indicated that according to Section 6 (6) of its business regulations, it does not assume responsibility for exceeding the authority of its representatives.

(30) Respondent 1 first contacted the Applicant in its letter dated February 2, 2023, following the

confirmation of the establishment of the housing savings contract, considering that the housing savings contract for the benefit of [...] number [...] was disbursed on March 31, 2023, for the purpose of a condominium project. Respondent 1 informed the Applicant about this in the letter dated [...], and also that the full payment of the savings can only occur after client due diligence, in accordance with the provisions outlined in the chapter titled "CLIENT DUE DILIGENCE TASKS FOR PAYMENT."

(31) Respondent 1 directs clients to its website within the framework of the information provided for the purpose of completing the tasks related to client due diligence. In the letter dated [...], Respondent 1 refers to its data processing information notice multiple times.

(32) Based on the above, Respondent 1 calls the attention of its clients, including the Applicant, in the letter dated [...], to the client due diligence required for the payment of the deposit of the housing savings contract and the completion of the Supplementary Identification Data Sheet, which clients can fill out and submit to Respondent 1 after receiving appropriate information on Respondent 1's website.

(33) According to Respondent 1's internal regulations regarding the prevention and detection of money laundering and the financing of terrorism, as well as the implementation of financial and asset restrictive measures ordered by the European Union and the UN Security Council, simplified client due diligence is applied if the client entered into a savings contract before October 17, 2018.

(34) In the case of simplified client due diligence, Respondent 1 obtains copies of the documents specified in Section 7 (3) to verify the identity in accordance with Section 15 (1) b) of the Act on the Prevention of Money Laundering. These documents are recorded and kept on file. According to Section 15 (1) b) of the Act, in the absence of the client's personal appearance, copies of documents and statements sent by the client by mail are also acceptable for the purpose of fulfilling client due diligence measures, meaning that Respondent 1 is not obliged to view the original documents in the case of simplified client due diligence. Respondent 1 provides information about this in the document titled ANNOUNCEMENT on the obligations related to client due diligence.

(35) It is the responsibility of contracting clients to complete, sign the identification data sheet, and attach copies of the documents. According to Respondent 1's position, therefore – based on the generally accepted meaning of the words in the email sent to Respondent 2 on June 10, 2022, at 14:23 – it can only be concluded by an average attentive and prudent representative that Respondent 1 requests the completion of the identification data sheet attached to their email from the contracting clients, as well as the attachment of copies of identification documents.

(36) Respondent 1 further emphasized that in its letter dated April 1, 2020, it had already informed Respondent 2 that "Our Company is obliged to obtain identification documents from private clients who entered into a housing savings contract or a related loan agreement before October 17, 2018."

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copies, copies of residence cards, and a declaration regarding the status of public figures must also be made for these clients," on the one hand, and that Respondent 1 took steps to obtain the necessary documents and contacted the affected clients.

(37) Based on the above, the contracting clients were expected to send the identification documents by mail.

(38) Respondent 1 only sent the information necessary for identification to Respondent 2 for informational purposes. On the one hand, Respondent 1 considers it necessary to inform the representatives of the condominium/apartment cooperatives that in the case of direct debits, the condominium/apartment cooperative is the grantor.

(39) The email sent on June 10, 2022, did not contain additional information compared to the letters sent to the contracting clients. Both the email notification sent to the representative of Respondent 2 on June 10, 2022, and the letter dated February 2, 2023, sent to the Applicant stated that it is the responsibility of the contracting clients, namely the Applicant, to return the identification form completed and signed to Respondent 1, as well as a copy of their identification documents, which can

be fulfilled by sending it by mail to Respondent 1.

(40) Respondent 1 considers it of utmost importance that the individuals involved in the transaction are fully aware of their roles, responsibilities, rights, and obligations. In order to strengthen a more transparent data management practice, Respondent 1 supplemented its ADVERTISEMENT with a data management information sheet, its Supplementary Identification Form, and sent the document titled "Information on Data Management Related to Customer Due Diligence," as well as its data management information sheet that was in effect on June 10, 2022.

(41) [...] is employed by Respondent 1, is not a data processor, and did not give instructions to Respondent 2 in connection with data management.

(42) The Supplementary Identification Form and copies of documents filled out by the Applicant were received by Respondent 1 (more precisely: Respondent 1's data processor) by mail on January 13, 2023. Based on these documents, an employee of Respondent 1 conducted customer due diligence in accordance with the Pmt. on January 19, 2023, after which the documents were scanned and archived. In this regard, Respondent 1 referred back to the previously mentioned fact that in the payment notification letter dated February 2, 2023 ([...] letter), it first contacted the Applicant and also stated that this letter informs the affected parties about data management related to customer due diligence. Here, Respondent 1 emphasized that until the sending of the [...] letter, it does not request the completion of the Supplementary Form and the related document copies from its clients. Respondent 1 attached copies of the referenced documents to support its claims, including the Supplementary Identification Form received on January 13, 2023, which has the inscription [...] in the upper right corner.

II.3. Statement of Respondent 2 (NAIH-2859-3/2023.)

(43) Respondent 2 represents the Cooperative in a joint capacity. Personal data is processed by Respondent 2 based on the provisions of Section 43 (1) of Act CXV of 2004 on Apartment Cooperatives (hereinafter: Lszt.), the articles of association, and the GDPR, based on the consent of the owners/members.

(44) Respondent 2 attached a copy of the mandate agreement concluded with the Cooperative (hereinafter: Mandate Agreement). The Mandate Agreement lists the main responsibilities of the managing director of Respondent 2.

(45) The personal data was requested by Respondent 1; Respondent 2 only and exclusively, as the document

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The intermediary participated, the requested data was not verified by Respondent 2, and it was not used in any respect; Respondent 1 decided on the purpose and means of data processing. Respondent 2 only forwarded Respondent 1's data sheet to the Applicant and did not provide any other information beyond what was included, as Respondent 2 does not carry out data processing related to the matter.

(46) The Cooperative decided at an extraordinary general meeting held on September 7, 2017, to carry out an energy modernization panel renovation of the building. A contract was concluded with [...] Ltd. for the comprehensive execution of the renovation.

(47) The financing of the works was carried out from a government-subsidized condominium loan under Government Decree 12/2001, combined with an individual LTP contract concluded by the Cooperative and the owner. The individual contracting owners declared at the time of the contract conclusion that the contractual loan would serve as collateral upon maturity.

(48) The Cooperative and Respondent 1 agreed that the payments would arrive from the Cooperative in a lump sum, referring to the [...] project number.

(49) Respondent 1 individually examines the contracting parties at the time of disbursement. As a joint representative (project manager), they received a letter regarding what data needs to be requested for

the disbursement.

(50) In order to fulfill the above, the processing company ([...] Ltd.) prepared an informational letter to accompany the supplementary data sheet, which was forwarded by Respondent 2 to the owners (Applicant).

(51) The collected data sheets were forwarded by Respondent 2 to Respondent 1 for the purpose of fulfilling the disbursement.

(52) After the Cooperative took out a loan of 232,270,000 HUF, they must ensure that all owners – including those who fulfill their obligations without concluding an LTP contract – have their repayments fully completed at the time specified in the loan agreement. For this purpose, Respondent 2 participated as a joint representative in the collection and forwarding of the data. The Applicant, after acquiring ownership – and thus cooperative membership – in the Cooperative, already provided their personal data to Respondent 2.

II.4. Statement of the Cooperative

(53) Based on Section 6:11 (1) of the Civil Code – which states that the actions of the joint representative make the housing cooperative community entitled and obligated – as well as based on Section 11 and Section 15 (1) h) of the Lszt., the Authority established that the matter directly affects the rights and legitimate interests of the Cooperative; therefore, the Authority granted the Cooperative party status under Section 10 (1) of the Ákr. and called for a statement for the purpose of clarifying the facts.

(54) The Cooperative stated the following in its letter received by the Authority on September 4, 2023:

(55) The Cooperative agrees with the statement made by Respondent 2. According to the Cooperative's statement, neither the Cooperative nor Respondent 2 carried out data processing activities in the matter; they only participated as intermediaries in the handling of the data sheet.

(56) The Cooperative referred to the fact that the Applicant complained to the Authority that when they voluntarily provided their personal data to Respondent 2, why they did not request the data processing information and the acknowledgment of receipt, and in light of this, why they still provided their personal data, and why they did not raise their concerns about this on the spot at that time.

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(57) The Cooperative submitted the following documents in copy at the request of the Authority:

- Articles of Association of the Cooperative,
- Internal Regulations of the Cooperative,
- Invitation to the General Meeting of the Cooperative dated May 10, 2023, and its attachments,
- Resolutions of the General Meeting held on May 30, 2023,
- Minutes of the extraordinary General Meeting held on September 7, 2017.

II.5. Resolution No. 7/2023 of the Cooperative

(58) Among the resolutions attached by the Cooperative, in Resolution No. 7/2023, the Respondent 2 was authorized as the joint representative to carry out the customer identification requested by Respondent 1, as the referenced resolution states:

“[...] authorizes the joint representative on behalf of [...] Ltd. to handle the termination of the [...] contracts, as well as the modification of the loan agreement, to sign the modified loan agreement and the related security agreements, and authorizes them to obtain the necessary documents and certificates in their name. [...]”

“[...] those who do not provide the necessary data for the customer identification process subsequently raised by [...] by the deadline to the Cooperative's joint representative, the joint representative shall charge the amount of the housing savings fund at the time of disbursement as a common cost debt to the respective owner's apartment, as well as all costs related to collection, reminders, etc. [...]”

II.6. Email sent by Respondent 1 to Respondent 2 on June 10, 2022

(59) The text of the email is as follows:

“Dear [...],

As per your request, I am sending attached a statement regarding the [...] project of the [...] Condominium. The password required for access is [...].

The identification of clients and, if applicable, the beneficiaries is necessary prior to the payment. I have highlighted in yellow in the statement those contracts where the expected disbursement date is March 31, 2023.

For contracts to be disbursed in 2026, identification can still be done later.

Please have the contracting clients fill out and sign the attached Supplementary Identification Form for the contracts marked in yellow, and attach copies of their identification documents (ID card, address card).

In order to process the payment for the contracts to be disbursed, a certificate issued by the financing institution [...] will also be required.

If any client has passed away from the project, please send a copy of the final inheritance transfer decree of the deceased. Based on the decree, we will officially notify the legal heir(s) by letter regarding what further documents are necessary for the transfer of the relevant contract.

Please send the identification documents and the original certificate from the financing institution to the following address:

[...]”

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I thank you in advance for your cooperative assistance!

Respectfully,

[...]”

III. Applicable Legal Provisions

(60) The GDPR must be applied to the processing of personal data carried out in a partially or fully automated manner, as well as to the non-automated processing of personal data that forms part of a filing system or is intended to be included in a filing system. The processing of data subject to the GDPR must be applied with the supplements specified in Section 2 (2) of the Infotv.

(61) According to Article 4(1) of the GDPR, “personal data” means any information relating to an identified or identifiable natural person (“data subject”); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, number, location data, online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

(62) According to Article 4(2) of the GDPR, “processing” means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

(63) According to Articles 4(7) and 4(8) of the GDPR:

7. “data controller” means the natural or legal person, public authority, agency, or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union or Member State law, the data controller or the specific criteria for the designation of the data controller may also be provided for by Union or Member State law;

8. “data processor” means a natural or legal person, public authority, agency, or any other body which processes personal data on behalf of the data controller.

(64) According to Article 6(1) of the GDPR, the processing of personal data is lawful only if and to the extent that at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party, or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular if the data subject is a child.

The provision in the first subparagraph (f) does not apply to the processing of personal data by public authorities in the performance of their tasks.

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(65) According to Article 12(1) of the GDPR:

(1) The data controller shall take appropriate measures to provide the data subject with all information regarding the processing of personal data referred to in Articles 13 and 14, as well as every piece of information under Articles 15-22 and 34, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, especially in relation to any information addressed to children. The information shall be provided in writing or by other means – including, where appropriate, electronically. Upon request of the data subject, oral information may also be provided, provided that the identity of the data subject has been verified by other means.

(66) According to Article 13 of the GDPR

Information to be provided where personal data are collected from the data subject

(1) Where personal data relating to the data subject are collected from the data subject, the data controller shall provide the data subject with the following information at the time of obtaining the personal data:

- a) the identity and contact details of the data controller and, where applicable, of the data controller's representative;
 - b) the contact details of the data protection officer, where applicable;
 - c) the purposes of the intended processing and the legal basis for the processing;
 - d) where the processing is based on point (f) of Article 6(1), the legitimate interests pursued by the data controller or by a third party;
 - e) where applicable, the recipients of the personal data or categories of recipients;
 - f) where applicable, the fact that the data controller intends to transfer personal data to a third country or an international organization, as well as the existence or absence of an adequacy decision by the Commission, or in the case of transfers referred to in Article 46, Article 47, or the second subparagraph of Article 49(1), the identification of the appropriate and suitable safeguards, as well as a reference to the means by which a copy of them can be obtained or the means by which they are made available.
- (2) In addition to the information referred to in paragraph (1), the data controller shall, at the time of obtaining the personal data, provide the data subject with the following additional information to ensure fair and transparent processing:

- a) the period for which the personal data will be stored, or if that is not possible, the criteria used to determine that period;

- b) the data subject's rights to request from the data controller access to and rectification or erasure of personal data or restriction of processing concerning the data subject, and to object to such processing, as well as the right to data portability;
 - c) where the processing is based on point (a) of Article 6(1) or point (a) of Article 9(2), the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
 - d) the right to lodge a complaint with a supervisory authority;
 - e) whether the provision of personal data is a statutory or contractual requirement or a requirement necessary to enter into a contract, as well as whether the data subject is obliged to provide the personal data and the possible consequences of failing to provide such data;
 - f) the existence of automated decision-making, including profiling, referred to in Articles 22(1) and (4), and at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.
- (3) If the data controller intends to further process the personal data for a purpose other than that for which the personal data were collected, the data controller shall provide the data subject prior to that further processing with information about that other purpose and with any relevant further information mentioned in paragraph (2).
- (4) The provisions of paragraphs (1), (2), and (3) shall not apply if and to the extent that the data subject already has the information.

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- (67) Pursuant to Article 58(2)(b) and (d) of the GDPR, the supervisory authority, acting within its corrective powers:
- a) reprimands the data controller or the data processor if their data processing activities have violated the provisions of this regulation.
 - b) instructs the data controller or the data processor to bring their data processing operations into compliance with the provisions of this regulation - in a specified manner and within a specified time frame, where applicable.
- (68) According to Article 77(1) of the GDPR, without prejudice to other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority - particularly in the member state of their habitual residence, place of work, or the place of the alleged infringement - if the data subject believes that the processing of their personal data infringes this regulation.
- (69) According to Section 10(1) of the Administrative Procedure Act (Ákr.), the client is a natural or legal person, or other organization whose rights or legitimate interests are directly affected by the case, for whom the official register contains data, or who has been subjected to official control.
- (70) According to Section 35(1) of the Ákr., the application is the client's statement requesting the conduct of an administrative procedure or the authority's decision in order to enforce their rights or legitimate interests.
- (71) According to Section 2(1) of the Housing Cooperatives Act (Lszt.), the housing cooperative is an economic organization established for the construction and maintenance of residential buildings. The housing cooperative is a legal entity.
- (72) According to Section 11 of the Lszt., if the apartments are owned by the members, the land parcel belonging to the building, the building structures, the areas and rooms of the building intended for common use, the central facilities, the caretaker's (custodian's) apartment, as well as other buildings (office, workshop, warehouse, etc.) and assets serving the purpose of the housing cooperative are owned by the housing cooperative. A building not serving the purpose of the housing cooperative - particularly a car storage facility - may also be owned by a member or a non-member owner.
- (73) According to Section 15(1)(h) of the Lszt., the general meeting of the Cooperative has the authority to change the manner of use and utilization of the parts of the building owned by the housing cooperative (Section 11).

(74) According to Section 21(1) of the Lszt., the housing savings account holder and the beneficiary defined in subsection (2) are entitled to state support corresponding to the amount of the deposit paid by the housing savings account holder in the given savings year, for a maximum of the first ten savings years. This support is provided annually by the central budget based on the application submitted by the housing savings account holder to the housing savings bank - either at the time of contract conclusion or later. The housing savings account holder is entitled to modify their application for state support until the last day of the savings year concerning the entire savings year. The rules for applying for, disbursing, accounting for, and monitoring the use of state support are determined by government regulation.

(75) According to Section 6:11(1) of Act V of 2013 on the Civil Code (hereinafter: Ptk.), unless otherwise provided by this law, a legal declaration may also be made through another person. A legal declaration made by a representative directly entitles and binds the represented party.

(76) According to Section 3:1(1) of the Ptk., a legal entity has legal capacity: it may have rights and obligations.

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(77) According to Section 6, paragraph (1), point a) of the Act on the Prevention of Money Laundering (Pmt.), the service provider is obliged to apply customer due diligence when establishing a business relationship.

(78) According to Sections 7, paragraphs (1) – (3) of the Pmt.:

(1) The service provider is obliged to identify the customer, their authorized representative acting on behalf of the service provider, their authorized person, and their representative, and to carry out verification of their identity in the cases specified in Section 6, paragraph (1), points a) and e)–h).

(2) During the identification process, the service provider is obliged to record the following data:

a) natural person

aa) their first and last name,

ab) their birth first and last name,

ac) their nationality,

ad) their place and date of birth,

ae) their mother's maiden name,

af) their address, or if not available, their place of residence,

ag) the type and number of their identification document;

b) legal entity or organization without legal personality

ba) its name, abbreviated name,

bb) the address of its registered office, or in the case of a foreign-based business – if applicable – the address of its branch in Hungary,

bc) its main activity,

bd) the names and positions of those authorized to represent it,

be) * – if applicable – the data of its delivery agent according to points aa) and af) of point a),

bf) in the case of a legal entity registered in the company registry, its company registration number, or in the case of another legal entity, the number of the decision regarding its establishment (registration) or its registration number,

bg) its tax number.

(3) For the purpose of verifying identity, the service provider is obliged to require the presentation of the following documents or to conduct a data inquiry from an authorized public register:

a) natural person

aa) in the case of a Hungarian citizen, their official identification document suitable for proving identity and their official document proving their address, the latter if their residence or place of stay is located in Hungary,

ab) in the case of a foreign citizen, their travel document or identity card, provided that it entitles them to stay in Hungary, their document proving the right of residence or document entitling them to stay, and their official document proving their address in Hungary, if their residence or place of stay is

located in Hungary;

b) in the case of a legal entity or organization without legal personality, the person authorized to act on its behalf or by proxy must present the document specified in point a) along with a supporting document – not older than thirty days – proving that

ba) the company has been registered by the company court, or the company has submitted its application for registration,

in the case of a sole proprietor, that the declaration of the commencement of sole proprietorship has been made or the sole proprietor has been registered,

bb) in the case of a domestic legal entity not falling under point ba), if its establishment requires registration by an authority or court, that registration has taken place,

bc) in the case of a foreign legal entity or organization without legal personality, that it has been registered or recorded according to the laws of its own country;

c) prior to submitting an application for registration to a court or authority, the founding document of the legal entity or organization without legal personality.

(79) According to Sections 7, paragraphs (8) – (8a) of the Pmt.:

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(8) In order to prevent and combat money laundering and the financing of terrorism, to properly fulfill the obligations defined in this law, to fully implement the customer due diligence obligation, and to effectively carry out supervisory activities, the service provider shall, for the purpose of verifying identity,

a) except in the case defined in points b), make a copy of the document containing the data specified in paragraph (2) and presented based on paragraph (3) – including all personal data indicated in the document – except for the back side of the official identification document proving the address, or

b) record and keep the result of the data query from the public register performed based on paragraph (3) regarding the data specified in paragraph (2).

(8a) The service provider shall handle all personal data indicated in the document defined in paragraph (3) that it has obtained while fulfilling the obligation specified in paragraph (8) – except for the personal identifier appearing on the back side of the official identification document proving the address.

(80) According to Section 8 (1) – (5) of the Pmt.:

(1) In the case specified in Section 6 (1), the natural person customer is obliged – in the manner determined by the service provider – to make a written statement in person, or to declare via a secure, protected electronic communication device operated by the service provider, in a manner determined by the supervisory authority specified in Section 5, which has been pre-audited, if acting on behalf of or in the interest of the beneficial owner.

(81) According to Section 9/A (1) of the Pmt., the natural person customer is obliged to make a written statement in person to the service provider, or to declare via a secure, protected electronic communication device operated by the service provider, in a manner determined by the supervisory authority specified in Section 5, which has been pre-audited, regarding whether they qualify as a politically exposed person or a close relative of a politically exposed person or a person closely associated with a politically exposed person. If the natural person customer qualifies as a politically exposed person or a close relative of a politically exposed person or a person closely associated with a politically exposed person, the statement must include which reference of Section 4 (2)–(4) they qualify as a politically exposed person or a close relative of a politically exposed person or a person closely associated with a politically exposed person.

(2) If the natural person customer qualifies as a politically exposed person or a close relative of a politically exposed person or a person closely associated with a politically exposed person, in addition to the data specified in paragraph (1), the statement must include information regarding the source of the funds and the source of the assets.

(3) The service provider is obliged to take measures to verify the statement made based on paragraph (1) in a register available for this purpose by law or in a publicly accessible register, and is also obliged

to keep a record of the measures taken for verification.

(4) The customer's statement specified in paragraph (1) may be omitted if the service provider records the data specified in paragraph (1) based on the documents presented to it, as well as from publicly accessible registers or from registers for which it is entitled to request data by law from the operator.

(5) In the case specified in paragraph (4), the service provider is obliged to also record the information that the recording of the data specified in paragraph (1) was made without the customer's statement specified in paragraph (1).

(82) According to Section 13 (1) – (2) and (8) of the Pmt.:

(1) Section 13 (1) * The service provider – except for paragraphs (2)–(6) – is obliged to conduct a verifying check of the identity of the customer and the beneficial owner before establishing a business relationship.

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(2) The service provider may conduct the verification of the identity of the client and the actual owner during the business relationship if this is necessary to avoid interruption of normal business operations and if the likelihood of money laundering or financing of terrorism is low. In this case, the verification of identity must be completed by the time of the first transaction.

(8) If the service provider is unable to carry out the customer due diligence measures specified in Sections 7–10, it is obliged to refuse to carry out any transaction through a payment account based on the client's order, to establish a business relationship, or to complete a transaction concerning the affected client, or it must terminate the existing business relationship.

(83) According to Section 15 (1) – (1a) of the Pmt.:

The service provider is obliged to perform the following customer due diligence measures in low-risk cases recorded in internal policies based on its own risk assessment as defined in Section 65:

a) during identification

aa) in the case of a natural person client, to record at least the data specified in Section 7 (2) point a) subpoints aa), ac), and af)–ag), and in addition to this data, based on a risk-sensitive approach, it may record the data specified in Section 7 (2) point a) subpoints ab), ad)–ae);

ab) in the case of a legal entity or an organization without legal personality, to record at least the data specified in Section 7 (2) point b) subpoints ba)–bb) and bf), and in addition to this data, based on a risk-sensitive approach, it may record the data specified in Section 7 (2) point b) subpoints bc)–be) and bg);

b) to obtain copies of the documents specified in Section 7 (3) for the purpose of verifying identity or to request data from a public register and to record and maintain the results;

c) to carry out the procedures specified in Sections 8 and 9 regarding the identity of the actual owner;

d) to carry out the procedures specified in Sections 9/A and 9/B regarding the determination of the prominent public figure status;

e) to fulfill the monitoring obligations specified in Sections 11 and 12.

(1a) * The service provider – with the exception of paragraph (1b) – is obliged to perform the customer due diligence measures specified in points a)–d) of paragraph (1) before establishing a business relationship.

(84) According to Section 15 (3) of the Pmt., the service provider may carry out the measures specified in paragraph (1)

a) through an electronically secure communication device operated by the service provider, in a manner determined by the supervisory authority specified in Section 5, which has been audited in advance,

b) in the absence of the client's personal appearance

ba) based on copies of documents and declarations sent by the client by post,

bb) in cases recorded in the internal policy based on the service provider's own risk assessment as specified in Section 65, based on documents and declarations securely sent by the client from the

identified electronic mailing address or uploaded to an electronic interface operated by the service provider for the purpose of communication with the client, or
bc) it may also be performed based on electronic documents made accessible to the service provider by the client, which include legal declarations containing copies of documents and declarations, suitable for the unchanged recall of the information contained therein, the identification of the declarant, and the time of making the legal declaration.

(85) According to Section 3 (2) of Government Decree 215/1996 (XII. 23.) on the state support for housing savings, the summary must contain the following data:

a) the identification data of the natural person housing saver and the beneficiary, their address, and their tax identification number;

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b) in the case of a non-natural person saving for housing, the name, registered office, tax number of the housing saver, as well as the address and land registry number of the building for which the housing savings contract was concluded;

c) the date of conclusion of the housing savings contract, the start of the savings year, and in the case of a fractional savings year, its end;

d) the account number of the deposit of the housing saver – for which state support is requested – the amount paid into the deposit account in the given savings year, the interest rate of the housing loan specified in the housing savings contract;

e) the requested state support for the given deposit;

f) the total state support requested for deposits held at the housing savings bank.

IV. Decision:

IV.1. The personal data of the Applicant, the related data processing, and the subject of the current procedure

(86) The data provided by the Applicant on the form titled "Supplementary Identification Data Sheet for Deposit Payment" (contract number, partner number, first and last name, birth first and last name, place of birth, mother's name, tax identification number) and the attached copy of the identification document are considered personal data of the Applicant according to Article 4(1) of the General Data Protection Regulation.

(87) Based on the above, the storage and transmission of the personal data indicated by the Applicant on the "Supplementary Identification Data Sheet for Deposit Payment" is considered data processing under Article 4(2) of the General Data Protection Regulation.

(88) In this procedure, the Authority examined, at the request of the Applicant, whether the data processing regarding the personal data indicated by the Applicant on the aforementioned form qualifies the Respondent 1 and Respondent 2 as data controllers, and whether the data controller has fulfilled its obligation to provide information.

IV.2. Roles in data processing

IV.2.2. Respondent 1

(89) Respondent 1 processes the personal data of the Applicant mentioned in point IV.1 – paragraph (86) (except for the tax identification number) based on Section 6(1), Section 7(1) – (3), (8), (8a), Section 8(1), Section 9/A, Section 13(1)-(2), (8), Section 15(1), (1a), (3) of the Act on the Prevention and Combating of Money Laundering. Therefore, its data processing is based on Article 6(1)(c) of the GDPR in this stage of the data processing process. The tax identification number can also be indicated as the legal basis under Article 6(1)(c) of the GDPR, and this personal data is processed by Respondent 1 based on Section 21(1) of the Act on Housing Savings according to Section 3(2)(a) of Government Decree 215/1996 (December 23). Regarding the mentioned personal data, Respondent 1 declared itself as the data controller concerning the processing of the personal data necessary for the Applicant's customer identification in its statement.

(90) Based on the above, Respondent 1 can be considered an independent data controller regarding the processing of the Applicant's personal data under Article 4(7) of the GDPR, as it has an independent purpose for data processing and determines the means of processing itself.

IV.2.3. Respondent 2 and the Cooperative

(91) Based on the statements in point II.5 of this decision, Respondent 2 did not exceed the authorization received from the Cooperative when it requested from the Applicant the personal data necessary for the identification of Respondent 1 (mentioned in point IV.1 of this decision).

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data and document copies, as the Cooperative was authorized to do so by its resolution No. 7/2023. Therefore, in this regard, the data controller – based on Article 4(7) of the GDPR – is the Cooperative, as it has an independent purpose for data processing and determines the substantive decisions regarding the data processing circumstances itself.

(92) The Cooperative's status as a data controller is supported by Section 2(1) of the Lszt. (Act on Cooperatives), as well as Section 3:1(1) and Section 6:11(1) of the Civil Code (Ptk.), thus the Cooperative qualifies as a data controller in relation to the examined data processing, as the Respondent 2, as the joint representative, acted on behalf of and in the name of the Cooperative.

(93) According to Article 12(1) of the GDPR, the data controller has an obligation to provide information related to data processing.

(94) For the above reasons, the Cooperative, as the data controller, was obliged to provide information to the Applicant; therefore, the Authority rejected the Applicant's request to establish the violation of the information obligation by Respondent 2.

(95) Respondent 2 also argued that it acted based on an email from one of Respondent 1's employees during customer identification, which is why Respondent 1 is the data processor, and also that the personal data was requested by Respondent 1. This statement contradicts Respondent 1's declaration, as Respondent 1 claimed that it sent the referenced email to Respondent 2 solely for informational purposes. Respondent 2's argument is not acceptable partly due to the aforementioned resolution No. 7/2023, and partly because Respondent 1's employee cannot instruct Respondent 2, nor can Respondent 1 instruct Respondent 2, as there is no such legal relationship between them. Furthermore, Respondent 2 cannot be considered a data processor because, according to the statement detailed in paragraphs (23) and (26), Respondent 1 does not consider Respondent 2 as a data processor, thus there was no data controller decision in this regard. The Authority also concluded – after examining the email referenced by Respondent 2, detailed in point II.6 of this decision – that the referenced email is more likely to be considered as information rather than any instruction, particularly noting that there is no indication in the text that Respondent 2 had any role in the identification.

IV.3. Legal Basis for the Cooperative's Data Processing

(96) Regarding the data processing of the Cooperative mentioned in paragraph (91), there is no appropriate legal basis under Article 6 of the GDPR, as the Money Laundering Act (Pmt.) obliges Respondent 1 to carry out customer identification, thus the Cooperative is not authorized to perform this, and could only have acted as an authorized representative or as a data processor based on Respondent 1's explicit decision in providing personal data related to customer identification, i.e., during data processing under Article 6(1)(c) of the GDPR.

(97) For the above reasons, the Authority established ex officio that the Cooperative processed (stored and transmitted to Respondent 1) the personal data of the Applicant related to Respondent 1's customer identification obligation without a legal basis, thus violating Article 6(1) of the GDPR.

IV.4.1. Information Obligation

IV.4.1.1. Information Obligation of Respondent 2 and the Cooperative

(98) Considering that, as established in point IV.2.2. of the decision, it was not Respondent 2, but the

Cooperative that was the data controller, the Authority rejects the Applicant's request for the Authority to establish that Respondent 2 did not fulfill its information obligation.

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(99) For the reasons stated above, and with reference to paragraph (93) of this decision, the Authority examined whether the Cooperative has fulfilled its obligation to provide information as stipulated in the GDPR. In this regard, it can be established that the Cooperative – as detailed in paragraph (58) of this decision – did not include a data processing information notice in its decision No. 7/2023, which would provide information regarding the circumstances of data processing in accordance with Article 13 of the GDPR concerning the personal data requested from the Applicant, as it only pertains to the authorization given to Respondent 2 to obtain the "necessary documents, certificates" in relation to the contract concluded with Respondent 1.

(100) The identification form submitted by the Applicant – sent by Respondent 2 based on the aforementioned cooperative decision – contains a data processing information notice; however, it refers to the purpose and legal basis of data processing by Respondent 1, thus referencing customer identification and the mandatory provisions of the Act on Money Laundering (Pmt). Due to the findings established in paragraph (96) of this decision, the Cooperative cannot invoke the Pmt, therefore this information cannot be accepted either. Furthermore, the information cannot be accepted because it does not provide clear information regarding whether the requested personal data will be forwarded by Respondent 2 to Respondent 1 on behalf of the Cooperative, nor does it clarify whether the data will be stored further or if only the data transfer will be carried out, and it also does not contain information regarding the exercise of the rights of the data subjects.

(101) Based on the above, the Authority establishes ex officio that the Cooperative has not fulfilled its obligations under Article 13 (1) – (2) of the GDPR.

IV.4.1.2. The Information Obligation of Respondent 1

(102) Respondent 1 stated what information it generally provides to its clients regarding customer identification and what it provided to the Applicant. However, the Applicant did not lack information related to the form sent by Respondent 1 to the Applicant, but rather what should have been provided regarding the personal data indicated on the form requested by Respondent 2.

(103) At the same time, Respondent 1 stated that the Additional Identification Form and document copies filled out by the Applicant were received by Respondent 1 (more precisely: Respondent 1's data processor) by mail on January 13, 2023. Based on these documents, an employee of Respondent 1 conducted the customer due diligence in accordance with the Pmt on January 19, 2023, and then the documents were scanned and archived. In this regard, Respondent 1 referred back to the previously mentioned fact that Respondent 1 first contacted the Applicant in the referral notification letter dated February 2, 2023 ([...] letter) and also stated that in this letter it informed the data subjects about the data processing related to customer due diligence. Here, Respondent 1 emphasized that until the sending of the [...] letter, it did not request the completion of the Additional Form and the related document copies from its clients. Respondent 1 submitted copies of the referenced documents to support its claims, including the Additional Identification Form received on January 13, 2023, which has the [...] inscription visible in the upper right corner.

(104) Based on the above, it can be concluded that Respondent 1 has processed and is processing the personal data necessary for the Applicant's customer identification, the source of which was not the Applicant but Respondent 2 (based on the findings established in the previous point, under the authorization of the Cooperative), as the customer identification was already performed before the Applicant was called upon to send them, since the necessary data had already been provided to Respondent 1 by Respondent 2. At the same time, Respondent 1 also stated that it did not send any information to the Applicant until the sending of the [...] letter, and in the [...] letter, it only provided the usual information. This implies that Respondent 1 did not inform the Applicant at all that it was already processing the Applicant's personal data in connection with customer identification, and that the source of the personal data was Respondent 2.

(105) The Applicant was aware of, or could have been aware of, the data transfer, as it was addressed in the decision No. 7/2023 of the Cooperative, which the Applicant voted on if they participated in the general meeting. However, the referenced decision of the Cooperative did not contain adequate data processing information in accordance with the GDPR, as established in paragraph (100) of this decision, nor did the letter sent by Respondent 2, thus Article 14(5)(a) of the GDPR is not applicable. Therefore, in addition to the references in paragraphs (99) - (100) of this decision, Respondent 1 should have also provided information about the fact of the data transfer based on Article 14(2)(f) of the GDPR.

(106) For the above reasons, the Authority found that Respondent 1 violated Article 14(2)(f) of the GDPR, thus granting the Applicant's request to establish that Respondent 1 violated Article 14(2)(f) of the GDPR. However, considering that the Applicant received information about other circumstances of data processing, the Authority rejected the Applicant's request regarding the violation of Article 14, in addition to the violation of Article 14(2)(f), and also rejected the Applicant's request for the Authority to instruct Respondent 1 to provide the missing documents.

IV.5. Request for the imposition of a data protection fine

(107) The application of this legal consequence does not directly affect the rights or legitimate interests of the Applicant; such a decision by the Authority does not create rights or obligations for them. Therefore, regarding the application of this legal consequence falling within the scope of public interest enforcement, the Applicant does not qualify as a client in relation to the imposition of a fine according to Section 10(1) of the Administrative Procedure Act (Ákr.). Since it does not comply with Section 35(1) of the Ákr., there is no basis for submitting a request in this regard, and this part of the submission cannot be interpreted as a request. The Authority points out in connection with the request for the imposition of a data protection fine – based on the preamble paragraphs (148) and (150), Article 58, and Article 83(2) of the General Data Protection Regulation – that the supervisory Authority is entitled, depending on the circumstances of the specific case, to decide ex officio in its discretionary power on effective, proportionate, and deterrent measures to be applied against the data controller/data processor for the protection of personal data, or instead of these, or in addition to them, on the necessity of imposing a sanction, such as the imposition of an administrative fine, and on its amount if imposed.

IV.6. Legal consequences

(108) IV.6.1. The Authority, ex officio, finds the Cooperative guilty based on Article 58(2)(b) of the GDPR for violating Article 6(1) of the GDPR, as well as Articles 13(1) – (2) of the GDPR, and also finds Respondent 1 guilty for violating Article 14(2)(f) of the GDPR.

(109) IV.6.2. The Authority exceeded the administrative deadline according to Section 60/A(1) of the Information Act (Infotv.), therefore the Applicant is entitled to 10,000 HUF, that is, ten thousand forints – at their choice – by bank transfer or postal voucher based on Section 51(1)(b) of the Ákr.

V. Other issues:

(110) The Authority's competence is defined by Section 38(2) and (2a) of the Infotv., and its jurisdiction extends to the entire territory of the country.

(111) The decision is based on Sections 80-81 of the Ákr. and Section 61(1) of the Infotv. The decision becomes final upon its communication according to Section 82(1) of the Ákr. According to Section 112 of the Ákr. and Section 116(1) of the Ákr., as well as Section 114(1) of the Ákr., there is a possibility for legal remedy against the decision through administrative litigation.

* * *

(112) The rules of administrative litigation are defined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12(1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13(3)(a)(aa) of the Kp., the

Metropolitan Court is exclusively competent for the case. According to Section 27(1)(b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39(6) of the Kp., the submission of the statement of claim does not have a suspensive effect on the enforcement of the administrative act.

(113) The time and place for submitting the statement of claim are determined by Section 39(1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77(1)-(2) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A(1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the proceedings is exempt from the advance payment of the fee according to Section 59(1) and Section 62(1)(h) of the Itv.

Budapest, "according to the electronic signature and timestamp"

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